

TENTATIVE RULING:

This Case Management Conference (CMC) Trails the Discovery Motions, which were vacated on Lines 16, 17, 18. This CMC is vacated and continued to July 20, 2026 at 8:30 a.m. No appearance is required on January 21, 2026.

Law & Motion

3. 9:00 AM CASE NUMBER: C23-00867

CASE NAME: STEPHEN STICKA VS. MARIA SANCHEZ

***HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED COMPLAINT**

FILED BY:

TENTATIVE RULING:

Before the Court is Plaintiff Stephen Sticka's Motion for Leave to File First Amended Complaint ("Motion").

Plaintiff's motion is **granted** as discussed below.

Factual Allegations and Procedural Background

This matter pertains to a motor vehicle accident that occurred on May 17, 2021. According to the Complaint, on that date Plaintiff was stopped at a red light on Monument Boulevard crossing Oakmead Drive in Concord, California. When the light turned green, Plaintiff drove forward and entered the intersection. It is alleged that Defendant was driving along Oakmead Drive, ran the red light, and struck the rear passenger side of Plaintiff's vehicle. Defendant then fled the scene, speeding down Monument.

Plaintiff followed the fleeing vehicle but could not keep up. He did, however, call 911 as he followed and provided dispatch with the license plate number for the vehicle.

Plaintiff filed his complaint on April 17, 2023. On March 18, 2025, Defendants filed a motion for summary adjudication directed toward Plaintiff's prayer for punitive damages. On October 14, 2025, the Court issued an order granting Defendant's MSA.

Plaintiff contends that during discovery Defendant failed to timely provide complete responses to discover, so he filed a motion to compel. After the motion was granted, Defendant provided amended responses on July 16, 2025. It was only at this time that Plaintiff's counsel became aware of new facts which support a new cause of action, namely a negligence entrustment cause of action. There are also some additional factual allegations added to the intentional tort/intentional infliction of emotional distress cause of action, which remains from the original complaint. Plaintiff filed the instant motion to amend on December 9, 2025 – almost 5 months later.

Standard

Code of Civil Procedure § 473(a)(1) provides the Court discretion to permit a party to amend its pleadings. There is "a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial [citations]..." (*Magpali v. Farmers Group* (1996) 48 Cal.App.4th 471, 487.) Leave to amend can be denied where there is "'inexcusable delay and probable

prejudice to the opposing party'... [Citation.]" (*Ibid.*) "[I]t is a rare case in which 'a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.'" (*Morgan v. Superior Court of Los Angeles County* (1959) 172 Cal.App.2d 527, 530 quoting *Guidery v. Green* (1892) 95 Cal. 630, 633.)

"Generally, leave to amend must be liberally granted [Citation], provided there is no statute of limitations concern, nor any prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation." (*Solit v. Tokai Bank* (1999) 68 Cal.App.4th 1435, 1448.)

A party opposing amendment must demonstrate that permitting the amendment will cause it to suffer prejudice. (*Rickley v. Goodfriend* (2013) 212 Cal.App.4th 1136, 1159; see also *Mesler v. Bragg Mgmt. Co.* (1985) 39 Cal.3d 290, 296-297.) "Motions to amend are appropriately granted as late as the first day of trial ... or even during trial ... if the defendant is alerted to the charges by the factual allegations, no matter how framed ... and the defendant will not be prejudiced.'" (*Rickley*, 212 Cal.App.4th at 1159 quoting *Honig v. Financial Corp. of America* (1992) 6 Cal.App.4th 960, 965.)

Trial is currently scheduled for February 2, 2026 – eight Court days from the date of the hearing on this motion.

Analysis

Defendant makes three general arguments as to why Plaintiff's request should be denied: (1) delay in seeking leave; (2) futility of the proposed amendment; and (3) prejudice to the Defendants.

Delay in Seeking Amendment

Plaintiff's counsel indicates that the late discovery responses that they received on July 16, 2025, provided, for the first time, the facts necessary to warrant the proposed amended complaint. Defendants note that given this admission, there was an unwarranted delay of approximately 150 days between when Plaintiff received those responses and when the motion for leave to amend was filed – on December 9, 2025 – almost 5 months later. As observed by Defendant, Plaintiff's counsel "offers no explanation for the delay." (Opp. at 3:12.)

In Reply, Plaintiff's counsel still fails to provide any explanation or reasoning for waiting so long to file the instant motion for leave to amend. Instead, they try to shift the focus back to Defendant's delayed discovery responses. Plaintiff argues that amendments "based on discovery disclosures, particularly disclosures produced only after a motion to compel, do not constitute inexcusable delay," citing *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486. *Hirsa*, however, makes no such finding. Nor does it discuss delayed discovery production or a motion to compel. Instead, *Hirsa*, addressed the issue of whether a later amended pleading can 'relate back' to the earlier pleading for statute of limitations purposes – which is not an issue currently before the Court.

The Court does find it concerning that Plaintiff's counsel waited so long to file the instant motion when they knew that trial was set for February 2, 2026, and has failed to provide any explanation for the delay. However, even if there is unreasonable delay, "it is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment." (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.) Prejudice will be discussed below.

Futility of Amendment

Defendant also argues that the proposed amendment would be futile as it fails to properly plead (and arguably cannot properly plead) the new cause of action for negligent entrustment.

It is true that certain situations would call for denial of leave to amend, such as when the “insufficiency of the proposed amendment is established by controlling precedent and where the insufficiency could not be cured by further appropriate amendment.” (*California Casualty Gen. Ins. Co. v. Superior Court* (1985) 173 Cal.App.3d 274, 280-81.) However, “the preferable practice would be to permit the amendment and allow the parties to test the legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings.” (*Kittredge Sports Co.*, *supra*, 213 Cal.App.3d at 1048 quoting *California Casualty Gen. Ins.*, *supra*, 173 Cal.App.3d at 281.)

To the extent Defendants believe the new cause of action is without merit, they can demur or move to strike any such claims or allegations.

Prejudice

“Where no prejudice is shown to the adverse party, the liberal rule of allowance prevails.” (*Higgins v. DelFaro* (1981) 123 Cal.App.3d 559, 564.) A party opposing amendment must demonstrate that permitting the amendment will cause it to suffer prejudice. (*Rickley*, *supra*, 212 Cal.App.4th at 1159; see also *Mesler*, *supra*, 39 Cal.3d at 296-297.)

Defendants contend that they will need to conduct new discovery and possibly obtain a new expert if leave to amend is granted. They (correctly) argue that this cannot be completed by the February 2, 2026, trial date – which is 8 court days after the date of this hearing. Both issues, however, can be remedied by vacating the trial date and re-opening discovery.

“In the furtherance of justice, trial courts may allow amendments to pleadings and if necessary, postpone trial. ... Motions to amend are appropriately granted as late as the first day of trial ... or even during trial ... if the defendant is alerted to the charges by the factual allegations, no matter how framed ... and the defendant will not be prejudiced.” (*Rickley*, *supra*, 212 Cal.App.4th at 1159.)

While Plaintiff does not mention vacating the trial date as a possible remedy, the Court finds that is the only way to ensure that Defendants are not prejudiced by Plaintiffs’ delayed motion for leave to amend made so close to the trial date.

Conclusion

“[I]t is a rare case in which ‘a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.’” (*Morgan v. Superior Court of Los Angeles County* (1959) 172 Cal.App.2d 527, 530 quoting *Guidery v. Green* (1892) 95 Cal. 630, 633.) It is also “error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (*Ibid.*)

Plaintiff’s motion for leave to amend is **granted**. As such the Court orders as follows:

- 1) The February 2, 2026, trial date is vacated.
- 2) Plaintiff must file his proposed First Amended Complaint within 5 court days of entry of this order.
- 3) Defendants' response thereto shall be filed per Code.

The Parties are ORDERED to appear at a Case Management Conference via Zoom on April 21, 2026 at 8:30 a.m. to discuss the scope of re-opening discovery and resetting of trial. The Parties shall meet and confer and propose mutually available trial dates to the Court in a Joint Case Management Conference statement filed at least five (5) calendar days before the CMC.

4. 9:00 AM CASE NUMBER: C24-00151
CASE NAME: BLACKHAWK OFFICE RE INVESTORS, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY VS. BLACKHAWK COMMERCIAL OWNERS ASSOCIATION, A CALIFORNIA MUTUAL BENEFIT COMMON INTE

***HEARING ON MOTION IN RE: QUASH SUBPOENA**

FILED BY: RAMANUJAN GROUP, LLC, A DELAWARE LIMITED LIABILITY COMPANY

TENTATIVE RULING:

The hearing on Defendant Ramanujan Group LLC's Motion to Quash Subpoena issued to Preferred Bank, or in the Alternative, for a Protective Order, calendared for January 21, 2026 is **vacated** from the Court's calendar and referred to the Discovery Referee, Hon. Elizabeth Feffer (Ret.) for hearing and for a report and recommendation. The Parties are ordered to provide copies of the Motion and responses to the Discovery Referee forthwith. No appearance is required on January 21, 2026.

5. 9:00 AM CASE NUMBER: C24-01855

CASE NAME: MARION KULLBERG VS. TAYLOR KNIGHT

***HEARING ON MOTION IN RE: PROTECTIVE ORDER**

FILED BY: KULLBERG, MARION

TENTATIVE RULING:

Summary

The following discovery motion is scheduled to be heard on by the Court on January 21, 2026 at 9:00 a.m. in Department 16:

1. Plaintiff's Motion for Protective Order re Deposition of Minor Stella Elwin filed on September 25, 2025.

The Parties have also scheduled hearings on the following discovery motions in Department 16 at 9:00 a.m. on the following dates:

2. April 22, 2026: Defendant Corbin Knight's Motion for Protective Order re Deposition of Corbin Knight filed on December 10, 2025
3. May 6, 2026: Plaintiff's Motion to Compel Further Deposition of Thomas Knight and for sanctions filed on January 2, 2026;
4. May 6, 2026: Defendant Corbin Knight's Motion to Compel Further Testimony from Marion Kullberg and Stella Elwin and for sanctions filed on January 6, 2026.